POLITY • RAS PRELIMS NOTES

Indian Polity & Governance

Constitution, Preamble, Fundamental Rights & Duties, Union government, judiciary, federal system, local bodies, constitutional bodies and governance

Inside these notes

- Every syllabus topic, explained simply and connected
- Article tables and body-by-body fact cards, the way RAS asks them
- Memory hooks and exam traps in every chapter

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Notes made for RAS aspirants - simple language, connected concepts, PYQ-based facts.

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How to use: read a chapter fully once, then revise only the tables, MEMORY HOOKS and EXAM TRAPS. Every fact here is written the way RAS papers ask it.

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1. Making of the Constitution, the Preamble and Citizenship

How the Constitution was made

- The **Constituent Assembly** was formed under the **Cabinet Mission Plan (1946)**. Its first meeting was held on **9 December 1946**; **Dr Sachchidananda Sinha** was the temporary (interim) chairman, and **Dr Rajendra Prasad** was elected permanent President on 11 December 1946.
- **B. N. Rau** was the Constitutional Adviser. The **Objectives Resolution** was moved by Jawaharlal Nehru on 13 December 1946 and adopted on 22 January 1947 — its ideas live on in the Preamble.
- The **Drafting Committee** was set up on **29 August 1947** with **Dr B. R. Ambedkar** as Chairman (7 members). Ambedkar is called the **Father of the Indian Constitution**.
- The Constitution was **adopted on 26 November 1949** (celebrated as Constitution Day / Samvidhan Divas since 2015) and **came into force on 26 January 1950** — the date chosen to honour **Purna Swaraj Day (26 January 1930)**.
- In its original form: **395 Articles, 22 Parts, 8 Schedules**, and a Preamble. Today it has grown to about **448 Articles in 25 Parts and 12 Schedules** through amendments.
- The Assembly took **2 years, 11 months and 18 days**, held 11 sessions, and also worked as the provisional Parliament until 1952.

MEMORY HOOK: 9 Dec first sitting, 26 Nov adopted, 26 Jan enforced — "December starts it, November adopts it, January launches it."

Sources — from where did we borrow what?

Feature	Borrowed from
Parliamentary system, rule of law, single citizenship	Britain
Fundamental Rights, judicial review, independent judiciary	USA
Directive Principles, Rajya Sabha nomination	Ireland
Federal system with a strong centre, residuary powers with the Centre	Canada
Concurrent List, freedom of trade and commerce	Australia
Fundamental Duties, five-year planning idea	USSR (Russia)
Procedure for amendment, Rajya Sabha election method	South Africa
Emergency provisions	Germany (Weimar Constitution)
Liberty, Equality, Fraternity	France
"Procedure established by law" (Article 21)	Japan

EXAM TRAP: Fundamental Duties are from the USSR, not the USA. Emergency provisions are from Germany, not Canada.

The Preamble

- The Preamble declares India to be a **SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC**.
- The words **"Socialist", "Secular"** and **"Integrity"** were added by the **42nd Amendment, 1976** — the only time the Preamble has been amended.
- It secures to all citizens: **JUSTICE** (social, economic, political), **LIBERTY** (thought, expression, belief, faith, worship), **EQUALITY** (status and opportunity) and **FRATERNITY** (dignity of the individual and unity and integrity of the nation).
- **Berubari Union case (1960)**: the Supreme Court first said the Preamble is **not** a part of the Constitution. **Kesavananda Bharati case (1973)**: the Court reversed itself — the Preamble **is** a part of the Constitution and reflects its **basic structure**, but it is **not enforceable** in court and is **not a source of power**.

PYQ PATTERN: RAS loves the pair "which words were added in 1976" and "in which case was the Preamble held to be a part of the Constitution" (answer: Kesavananda Bharati, 1973).

Citizenship (Part II, Articles 5–11)

- India has **single citizenship** — only of the Union, not of states (unlike the USA's dual citizenship).
- Parliament made the **Citizenship Act, 1955** to govern acquisition and loss. Citizenship can be acquired by **birth, descent, registration, naturalisation** and **incorporation of territory**.
- It can be lost by **renunciation, termination** (voluntarily taking another country's citizenship) and **deprivation** (by the government, in cases like fraud).
- The **Citizenship (Amendment) Act, 2019 (CAA)** fast-tracks citizenship for persecuted Hindu, Sikh, Buddhist, Jain, Parsi and Christian migrants from **Pakistan, Bangladesh and Afghanistan** who entered India on or before **31 December 2014**.

MEMORY HOOK: Articles 5–11 only set out who was a citizen at commencement; the full law is the 1955 Act made by Parliament under Article 11.

2. Fundamental Rights (Part III, Articles 12–35)

- Fundamental Rights are called the **Magna Carta of India**. They are **justiciable** — a citizen can move the courts directly for their enforcement (Article 32 to the Supreme Court, Article 226 to a High Court).
- Originally there were **seven** rights; the **44th Amendment, 1978** deleted the **Right to Property (Articles 19(1)(f) and 31)** and made it a **legal/constitutional right under Article 300A**. Six rights remain.

The six Fundamental Rights

Right	Articles	Key contents
Right to Equality	14–18	Equality before law (14); no discrimination (15); equal opportunity in public jobs (16); abolition of untouchability (17); abolition of titles (18)

Right	Articles	Key contents
Right to Freedom	19–22	Six freedoms in Art. 19 (speech, assembly, association, movement, residence, profession); protection in conviction (20); life & personal liberty (21); free education 6–14 yrs (21A); protection against arrest (22)
Right against Exploitation	23–24	Ban on human trafficking & forced labour (23); ban on child labour in hazardous work (24)
Right to Freedom of Religion	25–28	Freedom of conscience, practice & propagation (25); manage religious affairs (26); no tax for a religion (27); religious instruction in state institutions (28)
Cultural & Educational Rights	29–30	Minorities conserve language/culture (29); minorities run educational institutions (30)
Right to Constitutional Remedies	32	Move the Supreme Court directly; issue of writs

- **Article 19 freedoms are available only to citizens**; Articles 14, 20, 21, 25 etc. protect **every person**. Article 19 originally had **seven** freedoms — property was removed from it in 1978, leaving **six**.
- **Article 20** gives three protections: no ex-post-facto criminal law, no double jeopardy, no self-incrimination. **Article 22** does **not** apply to preventive detention beyond three months without an advisory board review, and not to enemy aliens.
- **Article 21** — "No person shall be deprived of his life or personal liberty except according to procedure established by law." In **Maneka Gandhi (1978)** the Court held the procedure must be **just, fair and reasonable**. Article 21 has grown to include privacy (**K. S. Puttaswamy, 2017** — privacy is a Fundamental Right), a clean environment, livelihood, health and speedy trial.
- **Article 21A** (inserted by the **86th Amendment, 2002**): free and compulsory education to children **6–14 years**, backed by the **RTE Act, 2009**.

The five writs (Articles 32 and 226)

Writ	Meaning	Used when
Habeas Corpus	"To have the body of"	Illegal detention — the detainer must produce the person
Mandamus	"We command"	A public authority fails to do its duty
Prohibition	Stay order from a higher court	A lower court/tribunal exceeds its jurisdiction — issued **before** the order
Certiorari	"To be certified"	Quashes an order of a lower court/tribunal — issued **after** the order
Quo Warranto	"By what authority"	A person illegally holds a public office

- Dr Ambedkar called **Article 32** the **"heart and soul"** of the Constitution.
- The Supreme Court's writ power (Art. 32) is itself a Fundamental Right; the High Courts' power (Art. 226) is **wider** — HCs can issue writs also "for any other purpose", but only within their

territory/state.

- During a National Emergency, Articles **20 and 21 can never be suspended** (44th Amendment), while enforcement of other rights can be suspended under Article 359; Article 19 is automatically suspended only when the emergency is declared on grounds of **war or external aggression** (Article 358).

EXAM TRAP: Prohibition is preventive (before), Certiorari is corrective (after). RAS swaps these two regularly.

3. Directive Principles and Fundamental Duties

Directive Principles of State Policy (Part IV, Articles 36–51)

- Borrowed from **Ireland**. They are **non-justiciable** — no court can enforce them — yet "fundamental in the governance of the country" (Article 37).
- In **Minerva Mills (1980)** the Court held that Parts III and IV must be read in **harmony and balance** — neither has supremacy over the other.

Article	Directive
38	Promote welfare of the people — a welfare state
39	Equitable distribution of resources; no concentration of wealth
39A	Free legal aid (added by 42nd Amendment, 1976)
40	Organise village panchayats
41	Right to work, to education and to public assistance
42	Just and humane conditions of work; maternity relief
43	Living wage for workers
43A	Participation of workers in management of industries (1976)
43B	Promotion of co-operative societies (97th Amendment, 2011)
44	**Uniform Civil Code** for all citizens
45	Early childhood care and education below 6 years (recast by 86th Amendment)
46	Promote educational/economic interests of SCs and STs
47	Duty to raise nutrition, standard of living, public health; prohibition of intoxicating substances
48	Organise agriculture and animal husbandry on modern lines
48A	Protect environment, forests and wildlife (1976)
49	Protect monuments and places of national importance
50	Separate the judiciary from the executive
51	Promote international peace and security

MEMORY HOOK: Articles 44, 40, 50 are the three most-asked single directives — UCC (44), Panchayats (40), Judiciary–Executive separation (50).

Fundamental Duties (Part IV-A, Article 51A)

- Added by the **42nd Amendment, 1976** on the recommendation of the **Swaran Singh Committee**; borrowed from the **USSR**. Originally **10** duties; the **86th Amendment, 2002** added the **11th** — a parent/guardian to provide education opportunities to a child/ward aged **6–14 years**.
- They apply **only to citizens**, are **non-justiciable** (no penalty unless a separate law provides one), and the **Justice Verma Committee (1999)** identified laws that already enforce some of them.

PYQ PATTERN: "How many Fundamental Duties are there?" — 11. "Which committee?" — Swaran Singh. "Which amendment added the 11th?" — 86th (2002), the same amendment that inserted Article 21A.

4. The Union Executive — President, Vice-President, Prime Minister

The President (Articles 52–62)

- The President is elected by an **electoral college** of **elected** members of Parliament and of state legislative assemblies (including Delhi and Puducherry), by **proportional representation through single transferable vote** and secret ballot (Article 55). **Nominated members do not vote** in the Presidential election.
- **Qualifications** (Article 58): citizen of India, **35 years**, qualified to be a Lok Sabha member, and holding no office of profit. Term: **5 years**; eligible for re-election. Resignation is addressed to the **Vice-President**.
- **Impeachment (Article 61)**: for "violation of the Constitution" — the charge can be preferred in either House, needs a **two-thirds majority of the total membership** of each House. No President has been impeached so far.
- Key powers: executive head of the Union (Art. 53); appoints the PM, ministers, Governors, judges, CAG, CEC, UPSC Chairman; summons, prorogues and dissolves the Lok Sabha; gives assent to bills (Art. 111) — absolute veto, suspensive veto and **pocket veto** (used by President **Giani Zail Singh** on the Indian Post Office Bill, 1986); promulgates **ordinances (Article 123)** — maximum life 6 months + 6 weeks; **pardoning power (Article 72)** — can **pardon** a death sentence (the only authority who can), while a Governor under Article 161 can suspend/commute but **cannot pardon a death sentence**.
- The President acts on the **aid and advice** of the Council of Ministers (Article 74) — binding since the **42nd Amendment (1976)**; the **44th Amendment (1978)** lets the President ask the Council to **reconsider once**, after which the advice binds.
- **First President**: Dr Rajendra Prasad (also the only President to serve two full terms). First woman President: **Pratibha Patil (2007)**. **Droupadi Murmu** (2022) is the 15th President and the first tribal woman to hold the office.

EXAM TRAP: In the President's election, elected MLAs of states vote but nominated MPs do not; in the Vice-President's election, nominated MPs **do** vote but MLAs do not. RAS swaps the two colleges.

The Vice-President (Articles 63–71)

- Elected by an electoral college of **members of both Houses of Parliament (elected + nominated)**; state legislatures take no part.
- Is the **ex-officio Chairman of the Rajya Sabha**. Term 5 years; removal needs a resolution of the Rajya Sabha passed by a majority of all its members and agreed to by the Lok Sabha (Article 67) — **no formal impeachment**.
- Acts as President when the office falls vacant, for a **maximum of 6 months**, within which a new President must be elected.

Prime Minister and Council of Ministers (Articles 74–75)

- The President appoints the **Prime Minister** (Article 75) — by convention, the leader of the majority in the Lok Sabha. Ministers are appointed on the PM's advice; the total number of ministers (including PM) cannot exceed **15% of the Lok Sabha strength (91st Amendment, 2003)**.
- The Council of Ministers is **collectively responsible to the Lok Sabha** (Article 75(3)). A non-MP can be a minister for a **maximum of 6 months**.
- **Attorney General (Article 76)**: the first law officer of India, appointed by the President; has the **right of audience in all courts** and can **speak in Parliament** (Article 88) but **cannot vote**. At the state level the counterpart is the **Advocate General (Article 165)**.

5. Parliament (Articles 79–122)

- Parliament = the **President + Lok Sabha + Rajya Sabha** (Article 79). The President is an integral part of Parliament though not a member of either House.

The two Houses

Point	Lok Sabha	Rajya Sabha
Maximum strength	550 (530 states + 20 UTs)	250 (238 elected + 12 nominated)
Present strength	543	245
Election	Direct, by adult suffrage (18+, after **61st Amendment, 1988**)	Indirect — by elected MLAs through proportional representation
Term	5 years (can be dissolved)	**Permanent body** — one-third retire every 2 years
Presiding officer	**Speaker** (deputy: Deputy Speaker)	**Chairman** = Vice-President (deputy: Deputy Chairman)
Special power	Money Bills; no-confidence motion	Creating All-India Services (Art. 312); authorising Parliament to legislate on the State List (Art. 249)

- The President nominates **12 members** to the Rajya Sabha from literature, science, art and social service (Article 80). The earlier nomination of 2 Anglo-Indians to the Lok Sabha was **abolished by the 104th Amendment (2020)**, which also ended the SC/ST seat-reservation extension debate by extending reservation to **2030**.

- **Speaker**: elected by the Lok Sabha from its members; certifies a **Money Bill** (decision final); presides over **joint sittings (Article 108)**; decides disqualification under the **Tenth Schedule (anti-defection, 52nd Amendment, 1985)**. The first Speaker was **G. V. Mavalankar**; the first woman Speaker, **Meira Kumar (2009)**.

Law-making essentials

- **Money Bill (Article 110)**: can be introduced **only in the Lok Sabha**, only with the President's prior recommendation; the Rajya Sabha must return it within **14 days** and cannot amend it. **Finance Bills** are of two kinds (Articles 110 and 117).
- **Joint sitting (Article 108)**: summoned by the **President** for ordinary bills when the Houses deadlock — **not** available for Money Bills or Constitutional Amendment Bills. Only **3 joint sittings** have been held (1961 Dowry Prohibition, 1978 Banking Service Commission, 2002 POTA).
- **Budget**: the **Annual Financial Statement (Article 112)** is laid by the President; demands for grants are voted **only by the Lok Sabha**; the **Consolidated Fund of India (Article 266)** and **Contingency Fund (Article 267)** are favourite one-line questions. Charged expenditure (e.g., judges' salaries) is **not voted**.
- Sessions: the gap between two sittings cannot exceed **6 months**; the President summons and prorogues. **Quorum** is one-tenth of the total membership (Article 100).

Parliamentary committees (most-asked three)

Committee	Strength	Membership	Chairman from
Public Accounts Committee (PAC)	22	15 LS + 7 RS	**Opposition** (convention since 1967)
Estimates Committee	30	Lok Sabha only	Treasury benches
Committee on Public Undertakings	22	15 LS + 7 RS	Lok Sabha

- PAC examines the **CAG's audit reports** — the CAG is called the **"friend, philosopher and guide"** of the PAC. **Departmentally Related Standing Committees** number **24** (16 LS + 8 RS).

MEMORY HOOK: Estimates = 30, only LS, and the largest committee of Parliament. PAC = 22, opposition-chaired. Learn the pair "30–LS–Estimates" and "22–Opp–PAC".

6. The Judiciary — Supreme Court and High Courts

Supreme Court (Articles 124–147)

- Composition: the Chief Justice of India and up to **33 other judges** — total **34**, raised from 31 by the 2019 Act. Judges are appointed by the President; in practice, the **Collegium** (CJI + 4 senior-most judges) recommends names — a system created by the **Second Judges Case (1993)** and protected when the Court struck down the **NJAC (99th Amendment) in 2015**.
- **Qualifications**: citizen; a High Court judge for **5 years**, or a High Court advocate for **10 years**, or a distinguished jurist in the President's opinion. Retirement age **65 years**.
- **Removal**: by the President after an address by each House supported by a **majority of total membership + two-thirds of members present and voting**, on grounds of **proved**

misbehaviour or incapacity — the same process as used for the CEC and CAG pattern ("like a Supreme Court judge").

- Jurisdictions: **Original** (Article 131 — Centre–state disputes; Article 32 — writs), **Appellate** (including Article 136 — special leave), **Advisory** (Article 143 — President's reference; the opinion is **not binding**), and **judicial review** — the power to strike down unconstitutional laws, part of the **basic structure**.
- The Court is a **court of record** (Article 129) — it can punish for its own contempt. Its seat is Delhi; the **CJI** decides other places of sitting with the President's approval.
- **First CJI**: Justice H. J. Kania. **First woman judge of the SC**: Justice Fathima Beevi (1989). There has been **no woman CJI yet** — a classic trap statement.

High Courts (Articles 214–231)

- Judges appointed by the President; retirement age **62 years**; salaries charged on the **Consolidated Fund of the State**, pension on the Consolidated Fund of India. Judges can be transferred by the President (Article 222).
- **Article 226** — writ jurisdiction, wider than Article 32. **Article 227** — superintendence over subordinate courts.
- India has **25 High Courts**. The **Rajasthan High Court** (1949) has its principal seat at **Jodhpur** with a bench at **Jaipur** — covered fully in the companion Rajasthan notes.

Subordinate courts and key doctrines

- Below the High Court: **District & Sessions Courts** (district judge appointed by the Governor in consultation with the HC — Article 233), civil courts and criminal courts under the CrPC/BNSS framework.
- **Public Interest Litigation (PIL)**: relaxed locus standi — any public-spirited person may approach the court for the poor and disadvantaged; pioneers: Justice **P. N. Bhagwati** and Justice **V. R. Krishna Iyer** (late 1970s).
- **Basic structure doctrine (Kesavananda Bharati, 1973)**: Parliament can amend any part of the Constitution under Article 368 but cannot destroy its **basic structure** — features like supremacy of the Constitution, secularism, federalism, judicial review, free and fair elections.
- **Article 13**: laws violating Fundamental Rights are void — the textual basis of judicial review of ordinary legislation.

PYQ PATTERN: RAS asks the retirement-age pair (SC 65 / HC 62) and the removal-majority pair almost in rotation. Fix them as a pair, never separately.

7. The Federal System, Union–State Relations and Emergency

Legislative relations (Articles 245–255)

- The **Seventh Schedule** divides subjects into three lists:

List	Subjects (original → now)	Who legislates
Union List	97 → **100**	Parliament alone
State List	66 → **61**	State legislatures

List	Subjects (original → now)	Who legislates
Concurrent List	47 → **52**	Both; Union law prevails on conflict (Art. 254)

- By the **42nd Amendment (1976)**, five subjects moved from the State List to the Concurrent List: **education, forests, weights and measures, protection of wild animals and birds, administration of justice**.
- **Residuary powers** (subjects in no list) lie with the **Centre** (Article 248) — the Canadian pattern, and a favourite RAS statement question.
- Parliament can legislate on the State List in five situations: Rajya Sabha resolution in national interest (**Art. 249**), during a National Emergency (**Art. 250**), two or more states requesting it (**Art. 252**), to implement international treaties (**Art. 253**), and during President's Rule (**Art. 356/357**).

Administrative and financial relations

- **Inter-State Council (Article 263)** — a recommendatory body to discuss subjects of common interest; constituted in 1990 on the **Sarkaria Commission's** recommendation.
- **Finance Commission (Article 280)**: constituted by the President **every 5 years**; recommends how net tax proceeds are shared (vertical and horizontal devolution). The **15th Finance Commission (N. K. Singh)** set states' share at **41%**; the **16th Commission (Arvind Panagariya)** was constituted in December 2023 for 2026–31.
- **GST Council (Article 279A)** — inserted by the **101st Amendment (2016)**; chaired by the **Union Finance Minister**; decisions need a **three-fourths weighted majority** (Centre's vote weight one-third, states together two-thirds).
- **Article 312**: the Rajya Sabha can authorise creation of **All-India Services** (IAS, IPS, IFoS) by a two-thirds resolution.

The three Emergencies

Point	National Emergency (352)	President's Rule (356)	Financial Emergency (360)
Grounds	War, external aggression, **armed rebellion**	Failure of constitutional machinery in a state	Threat to financial stability/credit of India
Parliament approval	Within **1 month**, by special majority	Within **2 months**, by simple majority	Within 2 months, by simple majority
Maximum duration	Indefinite (renewed every 6 months)	**3 years** (conditions after 1 year)	Indefinite until revoked
Effect on rights	Articles 358/359 operate	None directly	Centre can cut salaries incl. judges
Times proclaimed	**3** (1962, 1971, 1975)	100+ times	**Never**

- The **44th Amendment (1978)** replaced "internal disturbance" with **"armed rebellion"**, required the President to act only on the **written advice of the Cabinet**, and protected Articles 20–21.
- **S. R. Bommai (1994)**: the Supreme Court made President's Rule **judicially reviewable** and laid down that the floor test is the true test of majority. The first President's Rule was imposed in **Punjab (1951)**.
- Note: the phrase "President's Rule" does not appear in Article 356 — it speaks of a proclamation when the government of a state cannot be carried on in accordance with the Constitution.

MEMORY HOOK: Emergency approval clocks — National 1 month, State 2 months, Financial 2 months. Only one "1" in the row: 352 → 1 month.

8. Local Government — Panchayats and Municipalities

Panchayati Raj (73rd Amendment, 1992 — Part IX, Articles 243–243O)

- In force from **24 April 1993** (celebrated as National Panchayati Raj Day). It gave **constitutional status** to panchayats with a **three-tier** structure: **Gram Panchayat** (village), **Panchayat Samiti** (intermediate/block) and **Zila Parishad** (district). States with population below **20 lakh** may skip the intermediate tier.
- **Eleventh Schedule: 29 functional items** devolved to panchayats. **Gram Sabha** (Article 243A) = all registered voters of the village — the foundation of direct democracy.
- **Elections every 5 years** (Article 243E); if dissolved, elections within **6 months**. **Reservation**: seats for SCs/STs in proportion to population, and **not less than one-third (33%) for women** (many states, including Rajasthan, give **50%**).
- **State Election Commission (Article 243K)** conducts panchayat (and municipal) elections; **State Finance Commission (Article 243I)** is constituted every 5 years to review panchayat finances.
- **Historical root**: Panchayati Raj was first inaugurated on **2 October 1959 at Nagaur, Rajasthan**, following the **Balwant Rai Mehta Committee (1957)**; the **Ashok Mehta Committee (1977)** suggested a two-tier system.

Urban local bodies (74th Amendment, 1992 — Part IX-A, Articles 243P–243ZG)

- Three types: **Municipal Corporation** (Nagar Nigam) for larger cities, **Municipal Council** (Nagar Palika) for smaller urban areas, and **Nagar Panchayat** for areas in transition from rural to urban.
- **Twelfth Schedule: 18 functional items** (urban planning, water supply, public health, slum improvement...). **District Planning Committee (Article 243ZD)** consolidates rural and urban plans; **Metropolitan Planning Committee (243ZE)** serves metropolitan areas.
- Ward committees are mandatory for municipalities with population of **3 lakh or more** (Article 243S).

EXAM TRAP: 11th Schedule (29 items) = Panchayats; 12th Schedule (18 items) = Municipalities. "29 rural, 18 urban" — the bigger list belongs to the villages.

PYQ PATTERN: RAS has asked the committee chain repeatedly: Balwant Rai Mehta (1957, 3-tier) → Ashok Mehta (1977, 2-tier) → G. V. K. Rao (1985) → L. M. Singhvi (1986, constitutional status).

9. Constitutional and Statutory Bodies — the Master Table

RAS asks bodies as match-the-following: **basis (Article/Act), who appoints, tenure, removal**. Learn each body as one row of this table.

Body	Basis	Head/Chairperson: appointment	Tenure	Removal / Notes
Election Commission of India	**Article 324**	CEC + ECs appointed by the President (since the **2023 Act**, on a committee of PM + Leader of Opposition + a Union Cabinet Minister)	6 years or 65 years	CEC removable **like an SC judge**; ECs only on CEC's recommendation
UPSC	**Articles 315–323**	Appointed by the President	6 years or **65 years**	Removal by President after SC inquiry for misbehaviour; annual report to President (Art. 323)
State PSC (e.g. RPSC)	**Article 315**	Appointed by the **Governor**	6 years or **62 years**	Removed **only by the President** (not the Governor) after SC inquiry
CAG	**Article 148**	Appointed by the President	6 years or 65 years	Like an SC judge; **not eligible** for further government office after retirement
Finance Commission	**Article 280**	Appointed by the President every 5 years	As specified in the order	1 chairman + 4 members; qualifications set by Parliament
National Commission for SCs	**Article 338**	President	3 years (by rules)	Separate NCST under **Article 338A** (89th Amendment, 2003)
National Commission for BCs	**Article 338B**	President	3 years (by rules)	Got **constitutional status by the 102nd Amendment (2018)**
NHRC	**Protection of Human Rights Act, 1993** (statutory)	President, on a committee's recommendation	**3 years or 70 years**	Chairperson must be a **former CJI or SC judge** (after the 2019 amendment)
National Commission for Women	**NCW Act, 1990** (statutory; body set up 1992)	Central Government	3 years	First chairperson: **Jayanti Patnaik**
NCPCR (children)	**CPCR Act, 2005** (statutory; set up 2007)	Central Government	3 years	Protects rights under the UN Child Rights Convention
Central Information Commission	**RTI Act, 2005** (statutory)	President, on committee (PM + LoP + Cabinet Minister)	Term as prescribed (2019 amendment; rules fix **3 years**)	Chief IC + up to 10 ICs; state counterpart: SIC

Body	Basis	Head/Chairperson: appointment	Tenure	Removal / Notes
Central Vigilance Commission	**CVC Act, 2003** (statutory; body since 1964)	President, on committee (PM + Home Minister + LoP)	4 years or 65 years	Born of the **Santhanam Committee**; Central Vigilance Commissioner + up to 2 VCs
Lokpal	**Lokpal and Lokayuktas Act, 2013** (statutory)	President, on a selection committee (PM, Speaker, LoP, CJI/nominee, eminent jurist)	5 years or 70 years	First Lokpal: **Justice Pinaki Chandra Ghose** (2019); chairperson + max 8 members, half judicial
NITI Aayog	**Executive resolution, 1 Jan 2015** (neither constitutional nor statutory)	Chairperson: **the Prime Minister**	—	Replaced the Planning Commission; **Governing Council** = CMs of states + LGs of UTs; Vice-Chairperson appointed by the PM

- **Election Commission specials**: conducts elections to Parliament, state legislatures, President and Vice-President — **not** to panchayats/municipalities (State EC does that). Article 324's superintendence power is the source of the **Model Code of Conduct**. The Commission became **multi-member in 1993** (CEC + 2 ECs); decisions are by majority. Famous CEC: **T. N. Seshan** (1990–96), who enforced the code strictly.
- **UPSC specials**: it is a **consultative** body; the government may reject its advice but must explain to Parliament. It conducts the Civil Services Exam; its members are **ineligible for re-appointment** to the same office.
- **CAG specials**: called the **guardian of the public purse**; audits all government accounts; reports go to the President/Governor and then to the legislature's **PAC**. The CAG is appointed by the President but takes an oath before the President (Article 148(2)).

MEMORY HOOK: Tenure cluster — UPSC/CAG/EC: 65; State PSC: 62; NHRC/CIC/CVC: short fixed terms by Act. The only "62" in the Union table sits with the state body — and with High Court judges.

10. Governance — Public Policy, Citizen Charter, Social Audit, Grievance Redressal

Public policy and good governance

- **Public policy** = the course of action the government chooses to solve public problems: it runs **formulation → implementation → evaluation**. In India, formulation involves the Cabinet, NITI Aayog, ministries and increasingly, consultation with states and experts; implementation rests with the civil services and local bodies.
- Governance vocabulary RAS likes: **transparency** (RTI), **accountability** (social audit, CAG), **responsiveness** (citizen charters, grievance systems) and **participation** (Gram Sabha, social audit).

Citizen Charter

- A Citizen Charter declares an organisation's **standards of service** — what service, in how much time, of what quality, and where to complain. The concept began in the **United Kingdom (1991)** under PM John Major; India adopted it in **1997** under the Department of Administrative Reforms (DARPG).
- A charter is **not legally enforceable** by itself — it is a commitment, not a right. India's improved model is the **Sevottam** framework (2006), built on charters, grievance redress and service-delivery capability. Several states (including Rajasthan, through its **Guaranteed Delivery of Public Services Act, 2011**) converted time-bound service into a **legal guarantee**: if the service is late, the citizen is deemed to get relief/compensation as the Act provides.

Social audit

- A **social audit** is a public verification of a scheme's records by the community itself — accounts read aloud in a Gram Sabha/public hearing (*jan sunwai*). Rajasthan is its birthplace in practice: the **MKSS (Aruna Roy's Mazdoor Kisan Shakti Sangathan)** pioneered jan sunwais in the 1990s, which fed directly into the RTI movement.
- **MGNREGA, 2005** made social audit **statutory** (Section 17): the Gram Sabha must audit all works; Andhra Pradesh built the first dedicated social audit unit. Learn: social audit = **people auditing the government**, the opposite direction of a CAG audit.

Grievance redressal

- **CPGRAMS** (Centralised Public Grievance Redress and Monitoring System, 2007) is the Union government's online portal — a citizen files once and tracks the complaint across ministries. States run parallel portals; Rajasthan's is **Sampark (Rajasthan Sampark)**.
- Institutional chain above the portals: departmental grievance officers → DARPG at the Centre → in the last resort, bodies like the **Lokpal** (corruption by public functionaries) and courts.

Lokpal, CVC, CIC — the integrity trio

- **Lokpal (2013 Act)**: India's ombudsman for corruption complaints against the PM (with safeguards), ministers, MPs and central officials (Groups A–D). Born of the **Anna Hazare movement (2011)**; the Act came into force on **16 January 2014**; the first Lokpal took office in **March 2019**. States must create **Lokayuktas** — Rajasthan's Lokayukt is covered in the companion notes.
- **CVC (1964; Act of 2003)**: the apex vigilance body for corruption in central organisations; superintends the **CBI's** anti-corruption work (Delhi Special Police Establishment Act). It is **advisory** — it cannot itself prosecute.
- **CIC (RTI Act, 2005)**: hears second appeals against refusal of information; can order disclosure and penalise officers (Rs 250/day up to Rs 25,000). The RTI's 30-day reply rule and the "life and liberty" 48-hour rule are standard one-liners.

EXAM TRAP: The Lokpal is statutory (2013 Act), NITI Aayog is executive (2015 resolution), and the Finance Commission is constitutional (Article 280) — the "which of these is a constitutional body" question rotates exactly among these three.

11. Master Revision — Articles and Amendments RAS Asks Most

High-yield articles at a glance

Article	Subject
1	India, that is Bharat, shall be a Union of States
3	Parliament may form new states / alter areas and names
12–35	Fundamental Rights (Part III)
17	Abolition of untouchability
21 / 21A	Life & personal liberty / free education 6–14 years
32 / 226	Writs — Supreme Court / High Courts
40	Village panchayats (DPSP)
44	Uniform Civil Code (DPSP)
51A	Fundamental Duties
52–62	The President
72	President's pardoning power
74	Aid and advice of the Council of Ministers
76 / 88	Attorney General / his right to speak in Parliament
108	Joint sitting of Parliament
110	Money Bill defined
112	Annual Financial Statement (Budget)
123	President's ordinance power
124	Supreme Court established
136	Special leave to appeal
143	Advisory jurisdiction of the Supreme Court
148	CAG
161	Governor's pardoning power
163–164	Governor's discretion; CM & Council collectively responsible to the Assembly
168–169	State legislatures; creation/abolition of Legislative Councils
200	Governor's assent to state bills
213	Governor's ordinance power
214 / 226	High Courts / their writ power
243A / 243K	Gram Sabha / State Election Commission
249 / 252	Parliament legislating on State List (RS resolution / states' request)
263	Inter-State Council
266 / 267	Consolidated Fund / Contingency Fund of India
280	Finance Commission
279A	GST Council

Article	Subject
300A	Right to property (legal right)
312	All-India Services
315 / 320	Public Service Commissions / their functions
324	Election Commission
352 / 356 / 360	National / State / Financial emergency
368	Power and procedure to amend the Constitution
370	(Abrogated 2019) Special status of J&K
371–371J	Special provisions for various states

Landmark amendments

Amendment	Year	What it did
1st	1951	Added the **Ninth Schedule**; reasonable restrictions on free speech
7th	1956	Reorganisation of states on linguistic lines; Union Territories created
26th	1971	Abolished privy purses of former rulers
42nd	**1976**	"Mini-Constitution": Socialist/Secular in Preamble, Fundamental Duties, DPSPs expanded, 5 subjects to Concurrent List
44th	**1978**	Property right removed from FRs; emergency safeguards; Articles 20–21 protected
52nd	1985	Anti-defection law (Tenth Schedule)
61st	1988	Voting age lowered **21 → 18**
69th	1991	Special status for Delhi (NCT, Article 239AA)
73rd / 74th	**1992**	Constitutional status to Panchayats / Municipalities
86th	2002	Article 21A; 11th Fundamental Duty
91st	2003	Council of Ministers capped at **15%** of House strength
97th	2011	Co-operative societies (Part IX-B, Articles 43B, 243ZH)
101st	**2016**	GST — Article 246A and the GST Council (279A)
102nd	2018	Constitutional status to the National Commission for Backward Classes (338B)
103rd	**2019**	**10% EWS reservation** in jobs/education (Articles 15(6), 16(6)) — upheld in **Janhit Abhiyan (2022)**

Amendment	Year	What it did
104th	2020	SC/ST seat reservation extended to 2030; Anglo-Indian nomination ended
106th	**2023**	**Nari Shakti Vandan** — one-third reservation for women in Lok Sabha and state assemblies (after census + delimitation)

Amendment procedure (Article 368)

- An amendment bill can start in **either House**, needs a **special majority** (majority of total membership + two-thirds present and voting) in each House separately — **no joint sitting** is possible for it.
- Amendments to federal features additionally need **ratification by at least half the states**. The President **must** give assent (24th Amendment, 1971) and **cannot** use a veto or return the bill.
- Parliament's amending power is limited only by the **basic structure** (Kesavananda, 1973).

PYQ PATTERN: The closing pattern in RAS papers is a mixed statement set — e.g., "the President can return an amendment bill for reconsideration" (false), "joint sitting can resolve an amendment deadlock" (false). Both safeguards in this section kill such options instantly.

12. More High-Yield Ground — Languages, UTs, Defection and Parliamentary Devices

States and Union Territories today

- India has **28 States and 8 Union Territories**. The **Jammu & Kashmir Reorganisation Act, 2019** converted the state of J&K into two UTs — **Jammu & Kashmir (with a legislature)** and **Ladakh (without a legislature)** — with effect from **31 October 2019**, the same exercise that made Article 370 inoperative.
- UTs **with** legislatures: Delhi, Puducherry and J&K. **Delhi** has special status under **Article 239AA (69th Amendment, 1991)** — a 70-member Assembly and a Council of Ministers capped at **10% (7 ministers)**, with land, police and public order reserved to the Centre.

Official language (Part XVII, Articles 343–351)

- **Article 343**: Hindi in **Devanagari script** is the official language of the Union; English continues for official purposes (Official Languages Act, 1963 made it indefinite).
- The **Eighth Schedule** lists the scheduled languages: **14 originally, 22 today**. Additions: **Sindhi** (21st Amendment, 1967); **Konkani, Manipuri, Nepali** (71st Amendment, 1992); **Bodo, Dogri, Maithili, Santhali** (92nd Amendment, 2003).
- **Article 345**: a state may adopt its own official language(s) — Rajasthan's is Hindi. **Article 350A**: primary education in the mother tongue. **Classical languages** (declared by the government, not the Constitution): Tamil was the first (2004); the list now includes Sanskrit, Telugu, Kannada, Malayalam, Odia and, added in 2024, Marathi, Pali, Prakrit, Assamese and Bengali.

MEMORY HOOK: 14 → 22 by four doors: 1967 (1), 1992 (3), 2003 (4). "1-3-4" is the memory chain.

Reservation provisions (Articles 15–16 exceptions)

Provision	What it allows
15(3)	Special provisions for women and children
15(4)	Special provisions for SEBCs, SCs and STs (1st Amendment, 1951)
15(5)	Admission aid in educational institutions incl. private (93rd Amendment)
15(6) / 16(6)	**EWS reservation up to 10%** (103rd Amendment, 2019)
16(4)	Reservation in public jobs for backward classes not adequately represented
16(4A)	Reservation in promotion for SCs/STs
335	Claims of SCs/STs in services, balanced with efficiency

- The **Indra Sawhney (1992)** judgment upheld 27% OBC reservation in central jobs, **excluded the creamy layer**, and capped total reservation at **50%**.

Anti-defection (Tenth Schedule, 52nd Amendment, 1985)

- A member is disqualified if he **voluntarily gives up** party membership or votes/abstains against the party whip without permission (and is not condoned within 15 days). Independents joining a party, and nominated members joining after 6 months, are also disqualified.
- The **presiding officer decides** (Speaker/Chairman); the decision is judicially reviewable (*Kihoto Hollohan, 1992*). The **91st Amendment (2003)** deleted the "split" exemption (one-third) — only a **merger supported by two-thirds** of the legislature party survives.

Parliamentary devices — one-line bank

Device	Meaning
Question Hour	First hour of the sitting; starred (oral), unstarred (written) and short-notice questions
Zero Hour	Immediately after Question Hour; an **Indian innovation (1962)**, not in the Rules of Procedure
Calling Attention	Member calls a minister's attention to an urgent matter (Indian innovation, in the rules since 1954)
Adjournment Motion	Interrupts normal business for an urgent matter; needs support of **50 members**; LS only, involves censure
No-Confidence Motion	Only in the Lok Sabha; needs 50 members' support; no reasons need be stated
Censure Motion	States reasons; can be against an individual minister too
Guillotine	Outstanding demands for grants are put to vote together when time runs out
Point of Order	On interpretation/enforcement of rules; Speaker's decision is final
Special Mention (RS) / Rule 377 (LS)	Raising matters of public importance not covered elsewhere

EXAM TRAP: Zero Hour is **not mentioned** in the Constitution or the Rules book origin story — RAS states "Zero Hour is mentioned in the Rules of Procedure" as the false option. (It exists in practice since 1962.)

StuDy